

Land Acquisition (Bihar Amendment) Act, 1979

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State of Bihar - Act

Land Acquisition (Bihar Amendment) Act, 1979

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Land Acquisition (Bihar Amendment) Act, 1979

Act 2 of 1980

Published on 13 March 1980

Commenced on 13 March 1980

[This is the version of this document from 13 March 1980.]

[Note: The original publication document is not available and this content could not be verified.]

Land Acquisition (Bihar Amendment) Act, 1979

(Bihar Act

2 of 1980

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Published vide Bihar Gazette (Extraordinary) No. 241, dated 13.3.1980.

An Act to amend the Land Acquisition Act, 1894 in application to the State of Bihar.

Be it enacted by the Legislature of the State of Bihar in the 30th Year of the Republic of India as follows :-

1.

Short title.

- This Act may be called the Land Acquisition (Bihar Amendment) Act, 1979.

2.

Amendment of Section 26 of Act I of 1894.

- In Section 23 of Land Acquisition Act, 1894 (Act I of 1894), after sub-section (2) the following sub-section shall be added, namely :-

(3)

Notwithstanding anything contained in sub-sections (1) and (2), where the land is the subject-matter of a proceeding under the Bihar Land Reforms (Fixation of Ceiling Area and Acquisition of Surplus Land), Act, 1961 (Bihar Act XII of 1962), the amount in lieu of compensation shall be determined in accordance with the provisions of the said Act.

(4)

Where the land is subsequently released from the proceedings under the Bihar Land Reforms (Fixation of Ceiling Area & Acquisition of Surplus Land) Act, 1961 (Bihar Act XII of 1962) : the compensation payable will be determined in accordance with sub-sections (1) and (2).

Provided that from the amount so determined such sum be deducted as may have been paid under Section 24 of the Bihar Land Reforms (Fixation of Ceiling Area and Acquisition of Surplus Land Act, 1961 (Bihar Act XII of 1962).

3.

Repeal and Saving.

- The Land Acquisition (Bihar Third Amendment) Ordinance, 1979 (Bihar Ordinance No. 134 of 1979) is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken in the exercise of any power conferred by or under the said Ordinance shall be deemed to have been done or taken in the exercise of powers conferred by or under this Act as if this Act were in force on the day on which such thing was done or action taken.

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